



**State of Florida
Department of Children and Families**

Ron DeSantis
Governor

Taylor N. Hatch
Secretary

This notice is in response to your request submitted through the Florida Public Records Request System. Based on your request and proof of identity, a search of the Florida abuse reporting system, Florida Safe Families Network (FSFN), was conducted.

As the parent of a victim child, alleged responsible party or victim identified in an accepted investigation of record, you are entitled to a free copy of the computer-generated final report of record. Additional records, if any, are subject to prepayment. The Department does not re-release records from other sources.

The following information has been redacted from the attached pursuant to statutory exemptions:

- X Reporter information (§ 39.202(5))
- X Social Security numbers (42 USC§ 405)
- X Dates of Birth limited to the year (Rule 2.425(a)(2) Fla. R. Gen. Prac. & Jud. Admin.)
- X Names/records pertaining to other children, victims, or persons (§ 39.202(1))
- X Health information, Child Protection Team records (§ 395.3025, § 39.202(6), Fla. Stat.)

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Mission: Work in Partnership with Local Communities to Protect the Vulnerable, Promote Strong and Economically Self-Sufficient Families, and Advance Personal and Family Recovery and Resiliency



CONFIDENTIAL
INVESTIGATIVE SUMMARY (IS)
Child In-Home Investigation
(without Reporter Information)

Case Name Thanh Trinh	Intake Number 2013-278708-01	Intake Sub-Type In-Home	County Okaloosa
Date/Time Intake Received 10/14/2013 3:25 PM		Protective Investigator SCHNEIDER, KELSEY L	
Date/Time Investigation Closed 11/26/2013 10:04 PM		Protective Investigator Supervisor DUNFORD, SHERRY A	

I. Allegation Narrative(s)

Sequence Type Initial	Date/Time Received 10/14/2013 3:25 PM	Response Priority 24 Hours
Narrative In the past, Tony was in foster care. Tony has since been reunified with mom and the stepdad. After returning to mom and stepdad, Tony has become non verbal. Tony is afraid of the mom and the stepdad. He is also afraid of their punishments. Mom and the stepdad pull his ears and spank him. They also take his electronics away and lecture him. Tony does not want to live with mom and the stepdad. Tony misses his foster parents and wants to return to them.		
Field Narrative		

II. Victim(s)

Name Ha, Tony	DOB [REDACTED]/2000	Age 24	Gender Male	Race Asian	Disabilities No	
Maltreatment Physical Injury	Findings No Indicator		Incident Date 10/14/2013		Caregiver Responsible	Fatality No
Intervention Services are Needed No	Placement Outside the Home is Required No			Judicial Action Required No		

III. Other Participant(s)

Name TRINH, THANH T	DOB [REDACTED]/1967	Age 58	Gender Female	Race Asian	Role Parent in Home
Name Le, Long Van	DOB [REDACTED]/1968	Age 57	Gender Male	Race Asian	Role Parent in Home
Name Le, Hoang	DOB [REDACTED]/1992	Age 32	Gender Male	Race Asian	Role Household Member

IV. Implications for Child Safety

A. Signs of Present Danger Implications

Allegation: In the past, Tony was in foster care. Tony has since been reunified with mom and the stepdad. After returning to mom and stepdad, Tony has become non-verbal. Tony is afraid of the mom and the stepdad. He is also afraid of their punishments. Mom and the stepdad pull his ears and spank him. They also take his electronics away and lecture him. Tony does not want to live with mom and the stepdad. Tony misses his foster parents and wants to return to them.

Maltreatment: Physical Injury

CPI commenced the case at Destin Middle School. The SRO, Deputy Willis, and the Guidance Counselor, Mrs. Drew, sat in on the interview. The child is completely non-verbal. When asked a question, he would write his answers on a piece of paper. He resides with his mother, step-father, and step-brother. CPI asked him what happens to him at home when he

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gets into trouble, he made CPI a list: he gets lectures, he gets yelled at, he gets banned from his electronics, and at times they will pull his ears. When they pull his ears, he demonstrated, that they will pull his ear to the side. When they do that, it never leaves any marks or bruises. CPI observed his ears and he did not have any injuries. He informed CPI that he does not get spanked by his parents. He did not have any other visible marks or bruises. He is not scared at anyone at his home. He "kind of" likes living there. At times, when he gets yelled at, his parents say bad things. He gave CPI an example of something he gets into trouble for: sometimes he will "cut a sprite can to make a template". He could not clarify to CPI what that meant. Another example that he gave CPI was that: sometimes when he returns home from tutoring, his step-father is mad already, then he wrote that he did not know how to explain the second part. Due to his lack of verbal communication, it was difficult to obtain clarification on those examples.

CPI asked the child when he stopped talking; he did so when he was in the sixth grade. He is currently in the seventh grade. When CPI asked him the reason, he did not have one. He informed CPI that he speaks to his parents at his home, but not at school. Child also informed CPI that no one had told him not to speak; he made that decision on his own. He was in foster care for three years. Their names were Jay and Annette. His foster parents lived in Florida. He was returned to his parents in 2012. He spoke to his foster parents when he resided with them and he also spoke at school when he was residing with them. The child told CPI that he missed his foster parents because he loved them. CPI asked the child who all he felt loved him; he wrote: his brother, his grandmother, and his dogs. His dogs live at his former foster parents house. CPI asked him if his mother and step-father love him and he wrote, "They care for me". He is not afraid of his mother or step-father and when he is alone with his step-father after school, he is not afraid to be with him then. He also told CPI that he "kind of likes living there".

CPI completed a HV to the family's home along with Deputy Moore. When CPI arrived, the child and step-father were present. The mother and brother were still at work. The family is Asian. So, there is culture is different than American culture. The step-father was slightly confused about the reason that CPI was there and CPI explained it to him in several different ways. He informed CPI that the child talks to his family at home. He was not aware that he was not talking at school. He stated that he is a very quiet child. He said that he may be quiet because he is focusing on his school work, just as he does at home. CPI explained to him that his lack of communication is impacting his grades. He stated that he did not understand the reason the school had not talked to him about the issue because when he picks the child up from school, every person he speaks to tells him how great of a child Tony is. He stated that he interacts with them at home, but very little. He speaks only when he needs something. He said that he does not have that many friends; so, he does not do much on the weekends. His step-brother will take him bowling and other places with him. Step-father mentioned that they are strict on the child because of all the things they watch on television, they worry about what will happen to him.

CPI asked him if the child was previously in foster care. He did not understand the meaning of the word foster care. So, CPI explained it to him. He stated that when his wife and he got together, the child was living with a friend of the mother. He knows that Tony lived with them for a few years in Lakeland, FL. The mother was living in Destin; she was working to send the child money. CPI mentioned the names that the child gave to CPI, whom he referred to as his foster parents: Jay and Annette. He knew exactly whom those people were; they are friends of the mothers. He stated that they are Americans. While he was with them, they taught him English. Once he found out that Tony was living with them, he got him and brought him back to Destin to live with them. He felt as the mother's husband, it was his responsibility to ensure that the child was home with them and cared for. He stated that while he was at that home, he was dirty and disheveled; his hair was very long and put into a braid; his clothes were also very old fashioned. When he got to his house, he was acting like a dog for a long while. He would crawl under the kitchen table and pant. He was also hoarding garbage underneath his bed. He also was not eating and had bad hygiene practices. He stated that he does not know what happened to him at their house. Child has not disclosed anything to him. He feels as if they were taking advantage of him in order to get financial aid. He stated that the child no longer acts like a dog and that he has gotten a lot better. He stated that if the mother knows what happened to him at that house, she has not told him. Anytime that he asks her about it, she does not want to speak about it. He stated that since he has been at home with them, he is on a steady routine and he listens to all of his instructions. Before the mother and step-brother arrived home, CPI wanted to talk to the child more about his time with Jay and Annette, to ensure that he was not abused at their home which was causing him to act out in the way that he was when he returned to his mother's care. When he got into trouble at their house, they would warn him or lecture him. While he was at their house, he shared a room with his dog. He was never left unattended or held in the house against his will. CPI asked him the



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reason that he was imitating a dog when he returned to his mother's care; he wrote: "I wanted to play with my dogs". CPI asked him if he talked to his mother while in their care and wrote, "1 or 2 weeks". CPI discussed with him truth versus lie and good touch versus bad touch. He knew the difference and described a good touch as a pat on the back and a bad touch as a slap. He also knew that a bad touch occurred on his privates and he knew where that was on his body. He told CPI that no one had ever given him a bad touch. Also when he lived with them, there was no name calling or yelling. So, there was not disclosure of any abuse that was occurring at Jay and Annette's house.

At that time, the mother and step-brother arrived home. The brother speaks good English and stepped in to speak with CPI while the mother spoke with the step-father. CPI explained to him the reason that she was there and her role. He informed CPI that the child was never in foster care. He was residing in Tampa with the mother's ex-husband; they resided in Lakeland, FL. He stated that when the child first came to live with them, he was not dressed properly, which he later referred to as he was not dressed modern. He does not feel as if he was not cared for at his mother's ex-husband's home. However, one of the concerns was that they were not monitoring his school grades and they were low. When the step-father brought him home, the ex-husband transferred parental guardianship back to the mother. He stated that she has all of the legal paperwork. CPI asked him the reason that he was not living with the mother. When the mother divorced her ex-husband, she just left him in the care of her ex-husband; he did not know the reason, but did not feel as if that decision was an issue. He stated that since Tony has been in his care, no one has hit him or yelled at him. He feels that the reason that he does not speak at school is because he is shy. He talks to him at home and when he takes him places with his friends. When he does speak, he uses a very quiet voice.

The mother did not speak much English. She did tell CPI that the child is very quiet. When she cared for him, when he was younger, he talked a lot. However, once she got him back from Jay and Annette, he did not talk much. She does not know the reason. The child told her that he does not like to talk because it makes his throat hurt. She stated that for discipline, she verbally tells him that he should not do that particular action or she will just raise her voice to a certain level. CPI mentioned the ear pulling. The step-brother stated that at times, his ears are pulled, but it is not anything to an extreme nature. It does not ever hurt him or leave any marks or bruises. It appears that that type of discipline is due to their culture.

The home was clean and free of environmental hazards. The child has his own room. The child did not have any toys besides an X-box. They may be due to their culture. Also, the child likes to read a lot. There was plenty of food and the utilities work. Their home was very nice.

B. Child Vulnerability Implications

Tony is a 13 yo male. He goes to Destin Middle School where he is visible in the community. A main concern is that he is non-verbal. The child informed CPI that he does not speak at school, but speaks at home. When CPI saw the child at school, he had symbols written on his arm. He informed CPI that he wrote the symbols on his arm and that writing meant, "I love mom". No one made him write that on his arm, he did it himself. CPI asked him to clarify what his mother's name is and he wrote, "Tina"; so, he was not referring to his previous foster mother, but his bio mother. The Guidance Counselor, Mrs. Drew, asked the child the reason that he has a lower grade in Language Arts. He told her that it was because a narrative essay that he wrote was late. The child wrote a narrative essay stating how much he missed his foster parents, because they were his "soul parents". After he turned that essay in to be reviewed and it was given back to him for revisions, he never turned it back in to the teacher. CPI asked the child what it was that he missed about his foster parents. He wrote that he loved them and misses the "memories". The Guidance Counselor informed the child and CPI that the reason that his math grade was low was because he was not asking questions in class. So, due to his lack of verbal communication, he was not learning the material. The Guidance Counselor asked him to write down his questions for his teachers from now on; so, that he can learn. The child shook his head in a yes motion. He takes a shower everyday and dresses himself. He was clean and dressed appropriately. He did not have any marks or bruises indicative of abuse or neglect.

CPI consulted with the Guidance Counselor and the SRO. CPI asked the Guidance Counselor if the parents had been notified that their child was not speaking at school. She stated that they had not. There has not been a parent teacher



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conference or anything of that sort. CPI suggested that the parents be contacted; so that they are aware of the school's concerns for the child. They informed CPI that he interacts with the other children at school, he just does not speak to them. The other children seem to like him. One child told the Guidance Counselor that he talks to another child, James. CPI and SRO spoke to James and he informed them that Tony is his friend, but he does not speak to him. He has not seen him speak to anyone. He is not bullied about school for not talking. At times, when they are playing he will make screaming noises. He asked him once how long he has not talked and he held up two fingers. So, it appears that he interacts and plays with other children just without speaking to them.

Step-father informed CPI that the child goes to after school tutoring everyday during the school week. The tutoring sessions last 45 minutes and it is to help him with his math grade. The step-brother told CPI that the child's English is good. He feels that since he is struggling in math and language arts, that it might be helpful for him to be put in IEP classes. Step-brother was in those classes in school and he feels that was very helpful to him. CPI told the parents that it would be important for them to initiate a parent teacher conference, if the school does not do so, and ask them about extra help for the child.

C. Protective Capacities Implications

Child informed CPI that his step-father cooks him his meals everyday. He eats the essential three meals a day. His mother and father own a nail salon and his older brother also works there. His father is the person whom is home when he gets home from school.

The step-father told CPI that for discipline, he makes the child do chores or takes away his television time. He does not spank the child. He did state that at times they pull his ears; however, it is not very hard and used just to get his attention. [REDACTED] So, he stays home to care for the child while his mother works at their nail salon in Panama City. He takes him and picks him up from school; he cooks his meals. He has the child on a strict routine that he has to abide by unless it is the weekend. He does not have any problem with him abiding by his rules and instructions. While CPI was there, he told the child to come into the living room and speak about the reason that he was not talking at school; he still refused to speak. When the step-father interacted with the child, he spoke to him in a deeper, more commanding voice. He appears to have strict rules, but also seems to care about the child's well-being.

The mother interacted with the child in a positive manner. She gave him a hug when she arrived home and spoke to him in their native language. Even though the mother has a difficult time speaking English, she tried very hard to communicate with CPI about the child. She was very concerned about the reason that CPI was there. However, it felt as if she depended heavily on her husband and step-son for assistance in the matter. The family is very cultural as if was displayed in their home.

The step-brother was very protective of the child. He tries to take him out to do activities for some socialization. He wants to include him in activities so that he feels included. He feels as if he has gotten a lot better since he first moved in with them a year ago.

The mother, step-father, step-brother, and child's demographic information was obtained. Their criminal history will be checked for any child safety issues.

[REDACTED]

D. Criminal History Summary and Implications for Child Safety

E. Prior Reports and Service Records Implications for Child Safety

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V. Overall Safety Assessment

The risk to the child's safety is low. The child was not in foster care, he was placed with friends or the ex-husband of the mother for a few years; the reason for that was unclear since the family members could not explain to CPI the reason. The child's mother and step-father care for him adequately. Due to their culture, they are strict on the child and want him to succeed in school. The parents were not aware that he was completely non-verbal at school. They informed CPI that he is a quiet child and do not understand the reason that he is not verbal. He speaks to them at home. CPI informed them that his lack of communication was causing his math and language arts grade to slip. The child goes to tutoring after school everyday due to the step-father's concern for his math grade. A parent teacher conference would be beneficial in this situation and CPI addressed that issue with the guidance counselor. She told CPI that she was going to contact the parents in regards to setting one up. The child interacts with other children, non-verbally, and with his family verbally. He did not disclose any present or past abuse. So, it is unknown the reason for his behavior. CPI offered counseling to the family. Step-father stated that he would have to talk to his wife about it. They feel as if his lack of verbal communication is because he is just a quiet child. Family is doing well besides the concern for the child's lack of verbal communication. So, other services are not needed. CPI will check with the school in regards to services they can offer the child.

VI. Summary/Findings Implications

This case is being closed with No Indicators of Physical Injury. The allegation stated that the child's mother and step-father pull his ears and spank him. The child and parents both disclosed that the child's ears do get pulled occasionally, but it never leaves any marks or bruises. The child did not disclose that he gets spanked by his parents. Overall, the child was observed to be free of marks or bruises indicative of abuse.

VII. Recommended Disposition

Counseling services were offered to the family for the child due to his behavior concerns; however, that service was refused by the family. It appeared that services were declined due to their cultural values. In regards to the child being non-verbal at school, the guidance counselor set up a parent teacher conference on 10/24. The guidance counselor told CPI that the step-father attended the conference, the mother was at work. She informed the step-father of her concerns and they discussed what services could be offered to help the child. The step-father was open and continually takes the child to tutoring.

VIII. Signatures

SIGNATURE – Protective Investigator

Date Signed

SIGNATURE - Protective Investigator Supervisor

Date Signed